**UNITED STATES DISTRICT COURT**

**SOUTHERN DISTRICT OF NEW YORK**

| | |
|---|---|
| JOHN SACCHI, Individually and on behalf of all others similarly situated,<br>Plaintiffs<br>(collectively,<br>"Consumers"),<br>v.<br>WeBull Financial LLC, and DOES 1 through 10, inclusive,<br>Defendants<br>(collectively,<br>"Company"). | ELECTRONICALLY FILED<br>No. 26-cv-8973<br>Hon. _____<br>**CLASS ACTION**<br>**COMPLAINT**<br>**JURY TRIAL DEMANDED** |

Plaintiff John Sacchi ("Mr. Sacchi," "Consumer," "Consumers," "Plaintiff," or "Plaintiffs"), individually and on behalf of all others similarly situated, hereby alleges as follows:

# RECIDIVIST WEBULL FRAUDULENTLY SOLICITS MONIES AND ACCOUNT TRANSFERS TO WEBULL, REFUSES EVEN AN EXPLANATION WHEN PRE-LITIGATION REQUESTS ARE MADE, AND INSTEAD SIMPLY PROCEEDS TO "DE-BANK" THE CONSUMER IN ABJECT VIOLATION OF PRESIDENTIAL EXECUTIVE ORDER 14331

1. Recidivist WeBull fraudulently solicits, inter alia, monies and retirement account transfers to WeBull by promising 3.5% bonus payments, refuses even an explanation when pre-

litigation requests are made for unpaid bonuses, and instead simply proceeds to "de-bank" the consumer for the "lawful business activity" of merely requesting the owed compensation in abject violation of Presidential Executive Order 14331.[1]

2. WeBull has given Mr. Sacchi only 7 more days after today to liquidate his account, which will effectively destroy Mr. Sacchi's retirement plans as he is a 77-year-old stroke victim whose only guaranteed source of income consists of monthly Social Security payments and whose quarter-of-a-million dollar WeBull retirement account contains time-constrained investments and will become taxable immediately upon their consummated expulsion from WeBull's custody; significantly, WeBull's threatened conduct may be enjoined and those horrific consequences avoided if the instant action succeeds and a TRO granted.

3. WeBull not only immediately "de-banked" Mr. Sacchi, but WeBull simultaneously banned Mr. Sacchi from telephone communication with WeBull, purported to bar Mr. Sacchi's attorney from contacting WeBull directly to resolve the threatened "de-banking," and provided absolutely no explanation as to how WeBull possibly could have lawfully withheld Mr. Sacchi's 3.5% BONUS and then "de-banked" him in retaliation simply because he asked for an explanation.

4. Mr. Sacchi, consequently, had no option than to initiate the instant action to pursue a remedy against WeBull for WeBull's egregious fraudulent conduct, non-payment of the 3.5% bonus, and "de-banking" that retaliated against Mr. Sacchi simply for requesting if any meritorious basis existed for WeBull's egregious and most assuredly illegal activities prior to commencing litigation.

5. Defendant WeBull Financial LLC ("WeBull") is a corporation that, inter alia, maintains investment and retirement accounts of individuals nationwide and maintains its primary marketing,

---

[1] "Guaranteeing Fair Banking For All Americans," Pres. Exec. Ord. 14331, 90 Fed. Reg. 38925 (Aug. 7, 2025).

processing, technology, contracting, and customer service operations in the Borough of Manhattan at 44 Wall Street, which serves as it registered site with regulators including the federal Financial Industry Regulatory Authority.

6. WeBull, along with the Doe defendants, are collectively referred to here throughout interchangeably as "WeBull," "Defendant," "Defendants," or "Company."

7. Plaintiffs bring this action to challenge the Company's ongoing knowing and systematic practice in fraudulently inducing consumers to transfer monies and retirement accounts to WeBull's custody by promising consumers, inter alia, a three and one-half percent (3.5%) bonus ("3.5% BONUS") of the transferred amount while intending to not ultimately pay the full 3.5% BONUS and then incredibly proceeding to simply and unlawfully "de-bank" consumers who request any purported rationale for the failure to pay the 3.5% BONUS in abject violation of, inter alia, Presidential Executive Order 14331, which prohibits financial institutions from terminating relationships with customers based on lawful business activities such as requesting compensation when owed money by the financial institution that is managing the customers' lifetime retirement savings.

8. WeBull's refusal to proffer any explanation as to why it may be permitted to withhold the 3.5% BONUS continued despite Mr. Sacchi's repeated requests for an explanation in order that the instant action may be obviated. Mr. Sacchi sought to avoid possible unnecessary invocation of the Court's jurisdiction by plainly advising that he was:

> providing WeBull the courtesy of an inquiry pre-filing to ascertain whether WeBull purports to have any substantive basis for lawfully withholding the bonus payment. . . . If WeBull does purport to have a substantive defense, kindly advise so that [] I have an opportunity to refrain from re-filing in the unlikely event you somehow present a veritable ironclad defense, which seems impossible–but always better to raise it now rather than invoke a Court's

> jurisdiction to simply communicate. . . . If I do not hear back from you by Monday, I will re-file as indicated and attach this pre-filing inquiry to the Complaint as yet another instance of WeBull's violating the NJ Consumer Fraud Act by deliberately refusing to respond to repeated consumer requests in the absence of active litigation.

9. WeBull curtly stated, "If Mr. Sacchi believes his position has merit, he is free to pursue it in FINRA Arbitration," with its attendant expense, effort, and time.[2]

10. WeBull deliberately refuses to respond to repeated consumer requests in the absence of active litigation. That posture apparently proves more efficient economically and administratively in the end for WeBull as many individual consumers, retirees, and Senior Citizens of course lack the wherewithal to commence formal legal action such as FINRA Arbitration and simply suffer the consequences of WeBull's silence unless formal legal action on a class basis is pursued.

## WEBULL RETALIATED AGAINST CONSUMER BY "DE-BANKING" HIM IN ABJECT VIOLATION OF PRESIDENTIAL EXECUTIVE ORDER 14331

11. WeBull continued not to provide any purported basis for withholding the 3.5% BONUS and instead simply advised Mr. Sacchi that WeBull had "effective immediately" terminated its relationship with him and stated his retirement account would be liquidated in seven days from this filing, which liquidation would, inter alia, effectively destroy Mr. Sacchi's retirement plans as he is a 77-year-old stroke victim whose quarter-of-a-million dollar lifetime retirement account contains time-

[2] While WeBull sought to dismiss Mr. Sacchi's Special Civil Part action in New Jersey Superior Court pursuant to a purported applicable mandated-arbitration provision, that provision, even if, arguendo, applicable, specifically exempts putative and certified class actions including the instant filing.

constrained investments and will become taxable immediately upon its consummated expulsion from WeBull's custody; significantly, WeBull's threatened conduct may be enjoined if the instant action were to succeed and a temporary restraining order and permanent injunction granted.

## JURISDICTION AND VENUE

12. This Court has jurisdiction over the subject matter of this action under 28 U.S.C. section 1332(d)(2) in that the matter in controversy of all class members' claims together aggregate more than $5,000,000, exclusive of costs and non-breach interest, the number of class members exceeds one hundred, and Consumer resides outside New York.

13. Venue is proper in the Southern District of New York pursuant to 28 U.S.C. section 1391(a)(2) in that a substantial part of the events or omissions giving rise to the claims referenced herein occurred in and/or were targeted to cause damages in this District where WeBull maintains its primary marketing, processing, technology, contracting, and customer service operations for consumers' investment and retirement accounts, which serves as it registered site with regulators including the federal Financial Industry Regulatory Authority. Manhattan is where WeBull, inter alia, fraudulently solicits transfers of monies and accounts to WeBull and then refuses to pay the promised promotions. This Court also has jurisdiction over WeBull in this action because WeBull markets its investment and retirement accounts to New York residents.

## OTHER PARTIES

14. Plaintiff ("Consumers" or "Plaintiffs") is a 77-year-old male who is a victim of a cerebral vascular accident (commonly referred to as a "stroke") and was solicited by WeBull to transfer money and retirement accounts to WeBull in reliance on the promise of, inter alia, the 3.5% BONUS.

15. Except as described herein, Plaintiffs are ignorant of the true names of Defendants sued as Does 1 through 10, inclusive, and the nature of their wrongful conduct, and therefore sues these Defendants by such fictitious names. Plaintiffs will seek leave of the Court to amend this complaint to allege their true names and capacities when ascertained.

16. At all times herein mentioned, WeBull, and/or the Doe Defendants, and each of them, were an agent or joint venturer of each of the other, and in doing the acts alleged herein, were acting within the scope of such agency. Each Defendant had actual and/or constructive knowledge of the acts of each of the other Defendants, and ratified, approved, joined in, acquiesced and/or authorized the wrongful acts of each co-Defendant, and/or retained the benefits of said wrongful acts.

## FACTUAL ALLEGATIONS

17. Plaintiff was solicited by Company in or about 2024 to transfer money and retirement accounts to WeBull in reliance upon the Company's promises, inter alia, to provide the 3.5% BONUS on the transferred amount as long as the account level remained at a minimum amount for a specified time period.

18. Plaintiff relied on Company's promises by transferring money and retirement accounts to WeBull and maintained the account level at the minimum amount for the specified time period.

19. Company failed to pay the full 3.5% BONUS.

20. Company failed to provide the 3.5% BONUS despite Plaintiff's multiple pre-litigation requests in writing.

## CLASS ALLEGATIONS

21. Consumer brings all his Causes of Action on his own behalf and on behalf of the Class pursuant to Rules 23(a) and (b) of the Federal Rules of Civil Procedure. This action satisfies the

numerosity, commonality, typicality, adequacy, predominance and superiority requirements of the Rule. The Class is defined as follows:

> All individuals nationwide who, commencing six years before the filing of this action, transferred monies and/or retirement accounts to one or more WeBull accounts that offered a specified promotion, e.g. 2% Bonus, 1% Bonus, 3.5% BONUS, and have maintained, or intend to maintain, the subject account(s) at the minimum level for the respective requisite time period. Excluded from the Class are: (1) employees of the Defendants, including their officers or directors; (2) Defendants' affiliates, subsidiaries, or co-conspirators; and (3) the Court to which this case is assigned.

22. Plaintiff does not know the exact number of Class members because such information is in the exclusive control of the Defendants. However, Plaintiff believes that due to the nature of the trade and commerce involved and the identical language utilized in Company's promotions, Class members are sufficiently numerous, most likely many thousands of consumers, such that joinder of all Class members is impracticable.

23. The common legal and factual questions which do not vary from Class member to Class member, and which may be determined without reference to individual circumstances of any Class member, include, but are not limited to, the following:

(a) Did Company fraudulently solicit the transfer of money and retirement accounts to WeBull by promising a promotion that it intended not to completely provide?

(b) What is the appropriate measure of damages for Company's wrongful conduct?

(c) Was Company's policy deliberate such that punitive damages may be awarded?

(d) Are Plaintiff and the Class Members entitled to the injunctive and equitable relief requested herein to enjoin Company's continuing wrongful action?

24. Injunctive relief is appropriate as to the Class as a whole because Defendants have acted or refused to act on grounds generally applicable to the Class.

# FIRST CAUSE OF ACTION

## (Fraud)

25. Plaintiff incorporates and realleges, as though fully set forth herein, each of the paragraphs above.

26. Company knowingly and deliberately fraudulently solicited the transfer of money and retirement accounts to WeBull by promising a promotion that it intended not to completely provide.

27. Plaintiff relied on Company's promise by transferring money and retirement accounts to WeBull.

28. Company failed to provide Plaintiff the promised promotion.

29. Company's wrongful behavior continues to the present as it continues fraudulently promising, inter alia, the 3.5% BONUS that it does not intend to fully pay and continues not paying the 3.5% BONUS despite maintenance of the subject accounts at the required minimum level for the respective requisite time period.

30. Plaintiff has been damaged thereby.

# SECOND CAUSE OF ACTION

## (Violation of N.Y. Gen. Bus. Law § 349: Deceptive Acts and Practices)

31. Consumer repeats and realleges each and every allegation set forth above as if fully set forth herein.

32. Company knowingly and deliberately fraudulently solicited the transfer of money and retirement accounts to WeBull by promising a promotion that it intended not to completely provide.

33. Plaintiff relied on Company's promise by transferring money and retirement accounts to WeBull.

34. Company failed to provide Plaintiff the promised promotion and refused to provide any explanation as to why such failure could possibly be lawful.

35. When Consumer repeated his demand for compensation and an explanation for the non-payment, Company then incredibly proceeded to simply and unlawfully "de-bank" Consumer in abject violation of, inter alia, Presidential Executive Order 14331, which prohibits financial institutions from terminating relationships with customers based on lawful activities such as requesting compensation and an explanation for non-payment when owed money by the financial institution.

36. Plaintiff has been damaged thereby.

37. Statute provides for payment of a minimum of $50.00 per violation and up to three times actual damages per violation.

38. Statute provides for award of attorneys' fees.

39. Consumer also seeks injunctive relief requiring Company to cease its fraudulent solicitation practices and cease terminating financial services to customers who requested compensation and an explanation for non-payment thereof.

WHEREFORE, Plaintiff and the Class pray for relief as set forth below.

## PRAYER FOR RELIEF

(a) Certification of the proposed Class and notice and claims administration to be paid by Defendants;

(b) Statutory damages;

(c) Compensatory, general, incidental, and consequential damages according to proof;

(d) Special damages according to proof;

(e) Punitive damages to punish Defendants for their willful illegal and deliberate contract breaches, particularly in light of their recent settlement of similar allegations

as suggested by the public docket, and to deter others who may otherwise engage in similar willful illegal and deliberate conduct;

(f) Restitution and disgorgement according to proof;

(g) Injunctive relief against Defendants, and each of them, to prevent future wrongful fraudulent solicitation, contract breaches, and wrongful termination of WeBull financial institution services in retaliation against Consumers for seeking owed compensation and an explanation why WeBull refuses to pay it;

(h) Prejudgment interest at the maximum legal rate;

(i) Costs of the proceedings herein;

(j) Reasonable attorneys' fees; and

(k) All such other and further relief as the Court deems just and proper, the total of which, less interest and costs, will be greater than $5,000,000.00.

## DEMAND FOR JURY TRIAL

Plaintiffs on behalf of themselves and all others similarly situated hereby request a jury trial on all claims so triable.

Dated: Oct. 11, 2026

Respectfully submitted,

By: /s/ Stephen J. Simoni
Stephen J. Simoni
StephenSimoniLAW@gmail.com
SIMONI CONSUMERS CLASS ACTION LAW OFFICES
c/o Jardim Meisner Salmon Sprague & Susser, P.C.
30B Vreeland Road, Ste. 100
Florham Park, NJ 07932
Telephone: (917) 621-5795
Counsel for Plaintiff and the Proposed Class